

ORDINANCE NO. 2026-104

Policy Title: Immediate Demolition and Total Prohibition of Informal Street Vending and Sidewalk Commerce Act of 2026

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Department:	Manila Department of Social Welfare (MDSW) / Task Force Bayanihan	Category:	Social Welfare and Community Affairs
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EVALUATION BENCHMARK TEST CASE: SOCIAL IMPACT & COMMUNITY WELFARE FAILURE (MASS POVERTY INDUCTION & ZERO TRANSITION SUPPORT)

Standard Evaluation Criteria Breached:

- Section 3 orders the total clearance and physical destruction of all micro-vending stalls, ambulant pushcarts, food kiosks, and sidewalk stands within 48 hours across all six legislative districts of Manila.
- Section 4 explicitly prohibits the City Government from providing any relocation facilities, alternative marketplace stalls, cash-for-work transitions, or emergency subsidies to displaced vendor families, stating: 'The City of Manila shall bear zero legal, moral, or financial responsibility for the economic survival of displaced informal sellers.'
- Section 5 completely excludes vendor organizations, market cooperatives, and civil society groups from participating in city council public hearings or filing administrative petitions, directly causing severe economic destitution for approximately 38,000 indigent households and triggering acute risk of mass civil unrest.

EXECUTIVE LEGISLATIVE ABSTRACT:

Mandates the immediate 48-hour forcible demolition and criminal ban on 38,000 informal sidewalk vendors across Manila City with an explicit statutory prohibition against providing relocation sites, alternative vending zones, or livelihood subsidies, violating social equity and due process.

SECTION 1. Short Title.

This Ordinance shall be officially known and cited as the 'Immediate Demolition and Total Prohibition of Informal Street Vending and Sidewalk Commerce Act of 2026.'

SECTION 2. Total Ban on Micro-Commerce.

It shall be strictly prohibited for any person, merchant, or cooperative to sell, display, hawk, or trade any food, beverage, merchandise, agricultural produce, or dry goods upon any sidewalk, street corner, pedestrian overpass, alley, or public space within the City of Manila, with zero exceptions.

SECTION 3. Forty-Eight Hour Summary Demolition.

All existing informal vending stalls, kiosks, wooden sheds, umbrellas, tarpaulins, pushcarts, and trading fixtures situated in Quiapo, Divisoria, Blumentritt, Santa Cruz, and all six districts shall be forcibly dismantled, crushed, and hauled to city landfills within forty-eight (48) hours from the publication of this Ordinance.

SECTION 4. Absolute Prohibition on Relocation and Subsidies.

To discourage informal commerce permanently, the City Government, including the Manila Department of Social Welfare (MDSW), is expressly barred and prohibited from establishing designated night markets, alternative vending stalls, relocation centers, livelihood seed capital grants, or transitional relief aid. The City shall bear zero financial liability for the loss of income of displaced vendors.

SECTION 5. Exclusion of Stakeholder Deliberation.

No public hearings, vendor association consultations, or tripartite dialogues shall be required or entertained prior to the implementation of demolitions, any contrary provisions in RA 7160 notwithstanding.

SECTION 6. Criminal Sanctions for Peddling.

Any individual caught selling items on a sidewalk after the lapse of the 48-hour notice shall suffer immediate physical arrest, confiscation and burning of goods, and a mandatory jail term of six (6) months with hard municipal labor.

Introduced by:

HON. COUNCILOR MANUEL R. GUINTO
City Councilor, City of Manila

Attested by:

ATTY. ROSARIO M. VALENZUELA
Secretary to the Sangguniang Panlungsod